

3. Learned counsel for the petitioner mainly focused on the averments that offence under Section 489-F of PPC was not falling within embargo contained under Section 497 of Cr.P.C.; moreover it was punishable only with fine in alternate; no offence was made out against the petitioner from the prima facie perusal of the F.I.R.; bank authorities blocked the account of petitioner without any plausible justification, as such fault was

lying upon the shoulders of bank, which was sufficient to make present case that one of further inquiry.

4. Conversely, the learned Deputy Prosecutor General assisted by learned counsel for complainant opposed present petition vehemently and rigorously mainly on the grounds that petitioner earlier misappropriated the funds of bank, which stood transferred into his account mistakenly, thereafter he issued a cheque in order to discharge the liability of payment, but the cheque was dishonoured as the amount was not available in his account; mode and manner adopted by petitioner was meaningful; he was liable not only for offence under Section 489-F of PPC but also for offence under Section 406 thereof simultaneously.

5. Arguments heard. File perused.

6. Before touching upon the merits of the case I think it appropriate to adhere to the legal proposition first, which erupted during the arguments. Question to be determined by this Court was as to whether joint charge for offence under Section 489-F of PPC as well as offence under Section 406 of PPC pertaining to criminal breach of trust as defined in Section 405 of PPC could be brought against the petitioner.

I think it appropriate to throw a glance upon both the above said provisions, which are being produced below for the facility of reference.

“405. Criminal breach of trust: Whoever, being in any manner entrusted with property, or with any dominion over property, dishonestly misappropriates or converts to his own use that property, or dishonestly uses or disposes of that property, in violation of any direction of law prescribing the mode in which such trust is to be discharged, or of any legal contract, express or implied, which he has made touching the discharge of such trust, or wilfully suffers any other person so to do, commits "criminal breach of trust.”

“489-F. Dishonestly issuing a cheque: whoever dishonestly issues a cheque

towards repayment of a loan or fulfilment of an obligation which is dishonoured on presentation, shall be punished with imprisonment which may extend to three years or with fine, or with both, unless he can establish, for which the burden of proof shall rest on him, that he had made arrangements with his bank to ensure that the cheque would be honoured and that the bank was at fault in not honouring the cheque.”

When amount is received by a person into his bank account mistakenly or due to some error in the system of bank, normally it shall not be considered to be an entrustment within the meaning of Section 405 of PPC. Entrustment requires a deliberate act of placing confidence in another person to hold or use property for a specific purpose, which then must be followed by misappropriation or conversion by that person. Normally such like episode shall not fulfill the essential ingredients of Section 405 of PPC because the amount is not given by a person for safe keeping and specific fiduciary purpose, unless there is further evidence of dishonest intention to misappropriate the funds received by mistake.

7. In the case in hand amount received by petitioner was not meant to be utilized by him, but it was to be retained and preserved by him for return back to the bank, who was owner of the amount/fund. Petitioner was supposed and required to inform the sender/bank regarding the error and make arrangements for its return to the owner/bank.

8. The words “in any manner” used in Section 405 of PPC is of wider import. It extends to and covers all kinds of entrustment. It may be expressed or implied. When the amount/fund came into the account of petitioner, he acquired control and domain over the property and no other person could have access thereto. Said fact was carrying with it the implication that the bank shall continue to be its owner and he was legally as well as morally bound to return the same to its owner/bank, but petitioner put the funds/amount to his own use dishonestly. He caused wrongful gain to himself and wrongful loss to the bank.

Court has to see as to in what precise manner petitioner dealt with the funds coming under his control mistakenly.

9. As soon as petitioner became in a position to exercise his control over the property, the property stood entrusted to him impliedly, but he instead of returning the same to its owner/bank, withdrew an amount of Rs.25,00,000/- and embezzled the same, as such offence punishable under Section 406 of PPC fully attracted against him. When he was approached by bank authorities, he issued cheque of Rs.30,00,000/- in favour of the bank in order to discharge the liability of payment, which stood dishonoured, as such offence under Section 489-F of PPC was also made out against the petitioner.

10. As a result of above discussion, I am of the confirmed view that offence under Section 406 of PPC, although not applied upon the F.I.R., was also prima facie made out against the petitioner alongwith offence under Section 489-F of PPC and charge for both the above said offences can be brought together against the petitioner simultaneously.

11. So far as other submissions made by learned counsel for the petitioner are concerned, I am fully conscious of the fact that both the above said offences were carrying the penalty of imprisonment upto three years and seven years respectively, hence not falling within embargo contained in Section 497 of Cr.P.C. and bail is normally allowed in such like cases, but at the same time the Honourable Superior Courts were pleased to hold in plethora of the judgments that it is not a rule of universal application that bail should be allowed in each and every case not falling within prohibitory clause. Each case has to be seen in the light of its own peculiar circumstances. The Court may refuse the bail to an accused even in the cases not falling within the embargo, if exceptional circumstances of the case so require. If any reference in this regard is required that can be had from 'Shameel Ahmad v. The State' (2009 SCMR 174), 'Amir Sheikh v. The State' (2012 YLR 2136).

12. In the present case, petitioner after misappropriation of amount of the bank converted the same into his own use and thereafter issued the cheque for repayment of the above amount, which stood dishonoured. Thereafter, he claimed that offences were not falling within embargo, rather no offence was made out. He after commission of a mischief did not feel repentance, but justified the same and remained firm upon his stance. A person cannot be allowed to digest and enjoy the fruit of his own wrong. Peculiar and exceptional circumstances of the case do not permit me to exercise my discretion in favour of the petitioner despite of the fact that offences were not falling within embargo contained under Section 497 of Cr.P.C.

13. For the reasons recorded above, the present petition has no force, hence **dismissed**.

14. Needless to mention that any observation made in the above order is tentative in nature and shall not influence the learned trial court in any manner.

(TANVEER AHMAD SHEIKH)
JUDGE

APPROVED FOR REPORTING.

JUDGE

Shahzad Ahmad Nasir